



CHAPTER iv

An Act to confirm a Scheme of the Charity Commissioners for the application or management of Bromley College and other Charities, at Bromley, in the County of Kent. [2nd June 1960.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-nine reported that they had approved and certified a Scheme for the application or management of the following Charities, at Bromley, in the County of Kent:—

1. The Charity known as Bromley College and the subsidiary Charities thereof, namely, the Charities of Sir Orlando Bridgeman and Sir Philip Warwick, The Reverend William Hetherington, Lady Gower, The Right Reverend Zachary Pearce, Bishop of Rochester, Mrs. Betterson, William Pearce, The Right Reverend Walter King, Bishop of Rochester, Mrs. Rose, and Catherine Emma Crew Beynon ;
2. The Charity called Sheppard's Charity (otherwise Sheppard's College) and the subsidiary Charities thereof, namely,
 - (a) The Charity known as Hannah Finnie's Benefaction ;
 - (b) The Charity of Lucy Haslewood ;
 - (c) The Charity of The Reverend Henry Aldwin Soames ;
 - (d) The Charity of Louisa Ann Lacey ;
 - (e) The Charity of Elizabeth Hope Lacey ;
3. The Charity of James Edward Newell ;

4. The Charity called The Holland Fund:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: —

Confirmation
of Scheme.

1. The said Scheme is hereby confirmed: Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

Short title.

2. This Act may be cited as the Bromley College and other Charities Scheme Confirmation Act, 1960.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE FOLLOWING CHARITIES, AT BROMLEY, IN THE COUNTY OF KENT

1. The Charity known as Bromley College, founded by will of The Right Reverend John Warner, Bishop of Rochester, proved in the Prerogative Court of Canterbury on the 7th February 1667, and also comprised in the following instruments:—

Act of Parliament 22 Car. II cap. 2 (Private);

Decree made on the 28th March 1693 by the Commissioners by virtue of a Commission dated the 3rd November 1692 awarded under the great seal according to the Act of Parliament 43 Eliz. cap. 4;

Scheme of the Charity Commissioners of the 6th July 1923;

and the subsidiary Charities thereof namely the Charities of Sir Orlando Bridgeman and Sir Philip Warwick, The Reverend William Hetherington, Lady Gower, The Right Reverend Zachary Pearce, Bishop of Rochester, Mrs. Betterson, William Pearce, The Right Reverend Walter King, Bishop of Rochester, Mrs. Rose, and Catherine Emma Crew Beynon;

2. The Charity called Sheppard's Charity (otherwise Sheppard's College), comprised in a declaration of trust dated the 29th February 1844, and the subsidiary Charities thereof namely:—

(a) The Charity known as Hannah Finnie's Benefaction, founded by will of Hannah Finnie proved at London on the 6th June 1905;

(b) The Charity of Lucy Haslewood, founded by will proved in the Principal Registry on the 21st July 1910;

(c) The Charity of the Reverend Henry Aldwin Soames, founded by will proved in the Principal Registry on the 29th August 1921;

(d) The Charity of Louisa Ann Lacey, founded by will proved in the Principal Registry on the 27th March 1925; and

(e) The Charity of Elizabeth Hope Lacey, founded by will proved in the Principal Registry on the 14th January 1938.

3. The Charity of James Edward Newell, founded by will proved in the Principal Registry on the 16th March 1880;
4. The Charity called The Holland Fund, founded by the will of Maud Elizabeth Holland proved in the Principal Registry on the 13th November 1957.

1. *Administration of Charities.*—The above-mentioned Charities and the endowments thereof specified in the first schedule hereto and all other the endowments (if any) of the Charities shall be administered and managed subject to and in conformity with the provisions of this Scheme by the body of Trustees hereinafter constituted.

2. *Titles.*—(1) The Charity numbered 1 above and the Charity numbered 2 above shall be administered and managed together as one Charity under the title of Bromley and Sheppard's Colleges (hereinafter referred to as the Charity).

(2) The Charity and the Charities numbered 3 and 4 above are hereinafter together referred to as the Charities.

3. *Vesting.*—The lands specified in the first schedule hereto are hereby vested in The Official Trustee of Charity Lands for all the estate and interest therein belonging to or held in trust for the Charity and with respect to the land heretofore held from the Trustees of Bromley College by the Trustees of Sheppard's College to the intent that the tenancy thereof shall merge and be extinguished in the reversion thereof.

4. *Investment of cash.*—Sums of cash at any time belonging to the Charity and not needed for immediate working purposes shall be invested in the name of The Official Trustees of Charitable Funds unless the Charity Commissioners otherwise direct.

TRUSTEES

5. *Trustees.*—The body of Trustees shall consist when complete of eleven competent persons being—

Six Ex-officio Trustees and
Five Co-optative Trustees.

6. *Ex-Officio Trustees.* (1) The Ex-officio Trustees shall be—

The Archbishop of Canterbury,
The Bishop of London,
The Bishop of Rochester,
The Dean of St. Paul's,
The Chancellor of the Diocese of Rochester, and
The Archdeacon of Rochester,

all for the time being.

(2) Any Ex-officio Trustee by writing under his hand may appoint any fit person not being a Trustee to act as a deputy in his place and on his behalf at any meeting of the Trustees at which the appointor is unable to be present but the appointor shall be responsible for the acts or defaults of the deputy as if they were his own.

7. *First Co-optative Trustees.*—The following persons shall be the first Co-optative Trustees, namely:—

Major General Charles Wake Norman, C.B.E., D.L., of West
Farleigh Hall, Maidstone,

Major John Marsham-Townshend, of Scadbury Park, Chislehurst, and

Richard Frederick Norman, of The Village House, Halstead, Esquire, all the County of Kent,

Edward Norman Norman-Butler, of 7 St. Alban's Grove, in the Royal Borough of Kensington, Esquire, and

Major Edward Henry Lee-Warner, of Denton House, Harleston, in the County of Norfolk.

8. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed by a resolution of the Trustees passed at a special meeting.

9. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

10. *Determination of trusteeship.*—Any Co-optative Trustee who is absent from all meetings of the Trustees during a period of two consecutive years and any Trustee who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall cease thereupon to be a Trustee.

11. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall cause a note thereof to be entered in their minute book at their next meeting. No vacancy in the office of Co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF TRUSTEES

12. *Ordinary meetings.*—The Trustees shall hold at least one ordinary meeting in each year.

13. *First meeting.*—The first meeting of the Trustees shall be summoned by or on behalf of the Archbishop of Canterbury or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

14. *Chairman.*—The Archbishop of Canterbury shall be chairman of every meeting of the Trustees at which he is present. If at any meeting the said Archbishop is not present within ten minutes after the time appointed for holding the same the Trustees present shall choose one of their number to be chairman of the meeting.

15. *Special meetings.*—A special meeting may be summoned at any time by the said Archbishop or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed.

16. *Quorum.*—There shall be a quorum when four Trustees are present at a meeting.

17. *Voting.*—Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not voted previously on the same question but no Trustee in any other circumstances shall give more than one vote.

18. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Trustees. All proper accounts in relation to the Charities shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

19. *General power to make regulations.*—Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the Charities and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

20. *Clerk.*—The Trustees may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Trustee) a salary of £350 a year or such other remuneration as the Charity Commissioners approve from time to time.

21. *Local Committee.*—The Trustees may appoint four of their number who may be known as the Local Committee for the purpose of making any enquiry or performing any duty which in the opinion of the Trustees would be more efficiently undertaken by a committee but all acts and proceedings of the Local Committee shall be reported in due course to the Trustees for approval and confirmation.

22. *Treasurer.*—The Trustees may appoint one of the Co-optative Trustees to be the Treasurer of the Charities.

MANAGEMENT OF LANDS

23. *Treasurer's House.*—(1) The Treasurer's House specified in the first schedule hereto may be appropriated and used as additional accommodation for the Residents of the Charity or may be used as a residence for the Chaplain of the Charity or any Matron or Assistant Matron of the Charity.

(2) During any such time as the said Treasurer's House is not required for occupation as aforesaid the Trustees subject to the approval of the Charity Commissioners may let the same in accordance with the provisions hereinafter contained.

24. *Allotments Extension Act, 1882.*—The Trustees may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act, 1882, any portion of the land belonging to the Charity other than buildings and the appurtenances of buildings.

25. *Management and letting of lands.*—Subject as aforesaid all the lands belonging to the Charity not required to be retained or

occupied for the purposes thereof shall be let and otherwise managed by the Trustees. In every case public notice of the intention to let any land shall be given by the Trustees in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than 3 years of any existing term or for more than 21 years certain or for less than the best rent obtainable without the sanction of the Charity Commissioners or a competent Court.

26. *Leases.*—The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

27. *Repair and insurance.*—The Trustees shall keep in repair and insure for full value against fire all the buildings of the Charity not required to be kept in repair and insured by the lessees or tenants thereof.

EXTRAORDINARY REPAIR FUND

28. *Extraordinary Repair Fund.*—(1) Subject to any further Order or Orders of the Charity Commissioners a fund for the extraordinary repair, improvement or rebuilding of the college buildings for the time being belonging to the Charity shall be provided and maintained as follows.

(2) The Official Trustees of Charitable Funds shall transfer in their books to the credit of an account to be entitled Extraordinary Repair Fund a sum of £10,000 4 per cent. Consolidated Stock part of the sum of £10,522 17s. 4d. like stock specified in the said first schedule. The said Official Trustees shall invest the income of the said sum of stock and of any other securities standing to the credit of the said account and any cash placed to the credit of the said account at compound interest in the purchase in their name to the credit of the said account of any of the securities authorised for the investment of trust funds of the Charity.

(3) Any securities standing to the credit of the said account and representing the investment of income as aforesaid may be applied from time to time for the extraordinary repair, improvement or rebuilding of the said College buildings.

APPLICATION OF INCOME

29. *Upkeep of Colleges.*—The Trustees shall first defray—

(1) The cost of ordinary repairs and insurance and all other charges and outgoings payable in respect of the property of the Charity, the emoluments of the Chaplain and other the paid officers and servants of the Charity out of the income of the Charity ;

(2) All the proper costs, charges and expenses of and incidental to the administration and management of the Charities out of the income of the Charities and as between the Charity, the Charity of James Edward Newell and The Holland Fund so far as may be rateably.

30. *Residue of income.*—Subject to the payments aforesaid the Trustees shall apply the income of the Charity in the payment of out-pensions to the existing Out-pensioners of the Charity and subject thereto for the benefit of the Residents of the Charity or any of them or former Residents who may be in need of assistance in such manner as the Trustees think fit from time to time.

THE CHARITY OF JAMES EDWARD NEWELL

31. *Application of income.*—The Trustees shall apply the clear income of the Charity of James Edward Newell in accordance with the existing trusts that is to say in paying stipends to the five most aged widows in Bromley College.

THE HOLLAND FUND

32. *Transfer of investments.*—The investments specified in the first schedule hereto and belonging to The Holland Fund shall be transferred under the authority of further Orders of the Charity Commissioners into the name of The Official Trustees of Charitable Funds.

33. *Application of income.*—The Trustees shall apply the clear yearly income of The Holland Fund as follows:—

(1) The Trustees shall apply so much of the said income in such proportions as they shall think fit for the following purposes or either of them:—

(a) The payment of the salary of a permanent trained nurse for attendance on the Residents of the Charity; provided that any such nurse being eligible to be appointed to the office of Matron or Assistant Matron of the Charity may be appointed to hold either office in which event her salary shall be paid either out of the income of The Holland Fund or out of the income of the Charity as the Trustees from time to time think fit;

(b) The payment of the salaries of trained nurses engaged at such times and for such purposes as the Trustees may think desirable.

(2) Any part of the said income in any one year which shall not be required for either of the above-mentioned objects shall be accumulated and applied by the Trustees for the above-mentioned purposes or either of them in subsequent years.

34. *Investment of cash.*—Moneys belonging to The Holland Fund and requiring investment may be invested in any of the stocks, shares, funds or investments quoted on the London Stock Exchange or in or upon the security or purchase of any freehold or leasehold hereditaments in Great Britain such leasehold hereditaments having not less than sixty years unexpired at the time of investment or purchase but not in bearer securities.

COLLEGES AND RESIDENTS

35. *Appropriation of colleges.*—The said college buildings and the property heretofore occupied therewith shall be appropriated and used for the accommodation of the Residents in conformity with the provisions of this Scheme; provided that the Trustees may assign from time to time any portions of the said buildings and property to be the residences of the Matron or any Assistant Matron and (subject as hereinafter provided) the Chaplain of the Charity.

36. *Number and qualifications of Residents in Bromley College.*—The full number of the Residents in Bromley College shall be forty. They shall be poor widows of grave and pious conversation being relicts of orthodox and loyal clergymen preference being allowed to the widows of loyal and orthodox clergymen within the Diocese of Rochester.

37. *Number and qualifications of Residents in Sheppard's College.*—
(1) The full number of the Residents in Sheppard's College shall be five. Each of them shall be the daughter or step-daughter of a deceased Resident in Bromley College who shall have been residing with such deceased Resident in Bromley College at the time of the decease, shall not have married either previously or subsequently to such decease and shall be poor, preference being given to such daughter or step-daughter as shall have resided with such deceased Resident in Bromley College for the longest period provided she be in the discretion of the Trustees equally deserving and needy.

(2) If on the occasion of a vacancy in the number of Residents in Sheppard's College there is no person duly qualified as aforesaid and suitable for appointment the Trustees may appoint a widow who is duly qualified to be a Resident in Bromley College.

38. *Contributions.*—The Trustees may make it a condition of appointing or permitting any person to be or remain a Resident of the Charity that she shall contribute towards the cost of maintaining the said college buildings a weekly sum of not more than 12s. 6d. or such sum as the Charity Commissioners approve from time to time.

39. *Notice of vacancy.*—No appointment of a Resident in Bromley College shall be made by the Trustees until a sufficient notice (which may be according to the Form annexed hereto) of the vacancy to be filled specifying the qualifications required from candidates has been published by advertisement or otherwise so as to give due publicity to the intended appointment; provided that it shall not be necessary to give notice of any vacancy if such vacancy occurs within twelve calendar months after the last notice of a vacancy has been published as aforesaid.

40. *Applications for appointment.*—All applications for appointment shall be made in the first place in writing to the Trustees or their clerk or the Chaplain in such manner as the Trustees may direct. Before appointing any applicant to be a Resident the Trustees shall require her to attend in person unless she is physically

disabled or the Trustees are of opinion that special circumstances render this unnecessary. Every applicant must be prepared with sufficient testimonials and other evidence of her qualification for appointment.

41. *Appointments of Residents.*—Every appointment of a Resident shall be made by the Trustees at a special meeting.

42. *Selection of Residents.*—The Residents shall be selected after full investigation of the character and circumstances of the applicants.

43. *Register.*—The Trustees shall provide and keep separate books in which shall be entered the name, age, and description of every person appointed to be a Resident of Bromley College or a Resident of Sheppard's College, the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

44. *Absence from Colleges.*—(1) No Resident shall be absent from the Colleges of the Charity for a period exceeding 24 hours without having first notified the Chaplain or the clerk to the Trustees or one of the Trustees. No Resident shall be absent for more than 7 days at any one time or more than 28 days in any one year without the consent of the Trustees.

(2) Nothing in this clause shall prejudice the existing privileges of the existing Residents of the Charity.

45. *Occupation of houses.*—(1) The Trustees at their discretion may permit any Resident to share the occupation of the house or tenement allotted to her with one or more unmarried daughters or in special circumstances with some other female relation.

(2) No Resident shall be permitted to let or part with the possession of the house or tenement allotted to her or except with the permission of the Trustees to share the occupation of the same or of some part thereof.

46. *Chaplain.*—The Trustees from time to time shall elect and appoint in accordance with the Rules set forth in the second schedule hereto a Chaplain to minister in holy things according to the Church of England to the Residents of the Charity. The Chaplain shall be entitled while he holds such office to receive out of the income of the Charity a salary at the rate of £400 a year or at such other rate as the Charity Commissioners approve from time to time. The Chaplain shall hold his appointment during the pleasure of the Trustees and shall be removable by them at any time as they may think fit.

47. *Residence of Chaplain.*—(i) The Chaplain while he holds office shall reside in the Chaplain's House in Bromley College or in such other accommodation in Bromley College or in Sheppard's College as the Trustees may allot to him as a residence.

(2) In the event of the Chaplain's House not being required for use as aforesaid it may be used—

(a) as a residence for the Matron or any Assistant Matron of the Charity ;

- (b) if the Chaplain is allotted accommodation elsewhere in Bromley College, as a residence for a widow appointed to be a Resident of Bromley College ;
- (c) if the Chaplain is allotted accommodation in Sheppard's College, as a residence for a person appointed to be a Resident of Sheppard's College.

48. *Matron and Assistant Matron.*—The Trustees may appoint a Matron and an Assistant Matron dismissible at their pleasure to perform such duties as may be necessary for the superintendence and care of the Residents at such reasonable salary or salaries as the Trustees think fit and may allot to the Matron and any Assistant Matron a room or rooms in the Colleges as a residence while holding office.

49. *Porter and other servants.*—The Trustees may employ a Porter and such other servants as they consider necessary for the care and maintenance of the property of the Charity. The Trustees may pay to any person so employed such reasonable salary or remuneration as they think fit and may permit the person employed as the Porter to reside in the Porter's Lodge of Bromley College while he is so employed.

50. *Removal of Residents.*—(1) The following persons shall be removed from being Residents :—

- (a) Any Resident who marries ;
- (b) Any Resident who is detained under lawful authority as a person suffering from mental disease.

(2) The following persons may be removed from being Residents :—

- (a) Any Resident who in the opinion of the Trustees is guilty of insobriety, insubordination, breach of regulations or immoral or improper conduct ;
- (b) Any Resident who in the opinion of the Trustees is disqualified for retaining her appointment ;
- (c) Any Resident who has been appointed without having the required qualifications ;
- (d) Any Resident who in the opinion of the Trustees is suffering from mental or other disease or infirmity rendering her unfit to remain a Resident.

(3) In any case of such misconduct as aforesaid the Trustees may suspend the Resident concerned from the receipt of any form of assistance from the Charity either wholly or in part and during such time as they think fit.

(4) Upon the removal of any Resident, Matron, Assistant Matron, Chaplain or Porter the Trustees shall take possession of the house or tenement occupied by her or him.

(5) Any Resident removed under head (b) of section (1) of this clause or removed under section (2) of this clause on account of mental or other disease or infirmity may be reappointed on recovery without previous notice being given of the vacancy.

51. *Regulations.*—The Trustees may prescribe from time to time such reasonable regulations as they consider expedient for the government of the Residents provided that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the Residents shall render such assistance to each other and to the Matron or the Assistant Matron as is within their power.

POWERS OF INVESTMENT

52. *Powers of investment.*—(1) The Trustees shall have power henceforth to divide into two equal parts (hereinafter referred to respectively as a free part and a restricted part) each of the following namely :—

- (a) The investments and moneys now belonging to the Charity other than land and moneys not requiring investment ;
- (b) Any investments and moneys that may hereafter come into the hands of the Trustees or belong to the Charity and require investment including the proceeds of sale of land at any time belonging to the Charity but excluding moneys already forming part of a free part or a restricted part ;
- (c) The investments and moneys now belonging to the Charity of James Edward Newell other than moneys not requiring investment ;
- (d) Any investments and moneys that may hereafter come into the hands of the Trustees and require investment in trust for the said Charity of James Edward Newell excluding moneys already forming part of a free part or a restricted part.

(2) The Trustees shall have power to invest any such free part as aforesaid in addition to the investments authorised by law for the investment of trust moneys by contributing the same to the Investment Fund administered by the Central Board of Finance of the Church of England under the Church Funds Investment Measure, 1958.

(3) The Trustees shall invest any such restricted part as aforesaid only in investments for the time being authorised by law for the investment of trust moneys.

GENERAL PROVISIONS

53. *Saving for existing beneficiaries.*—The provisions of this Scheme shall have effect without prejudice to the interests of the existing Residents and Out-pensioners of the said Charity numbered 1 and the said Charity numbered 2.

54. *Appropriation of benefits.*—Except as hereinbefore provided for a Local Committee the appropriation of the benefits of the Charities shall be made by the Trustees from time to time at meetings of their body and not separately by any individual Trustee or Trustees.

55. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Charities otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration, or be interested in the supply of work or goods, at the cost of the Charities.

56. *Charities not to relieve public funds.*—Income of the Charities shall not in any case be applied in relief of rates, taxes or other public funds.

57. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

58. *Questions under Scheme.*—Any questions as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

59. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

FORM OF NOTICE

In the matter of the Charity called Bromley and Sheppard's Colleges, at Bromley, in the County of Kent.

Notice is given that a vacancy exists in the number of Residents accommodated in Bromley College.

Poor widows of grave and pious conversation being relicts of orthodox and loyal clergymen are eligible for appointment. Preference will be allowed to widows of loyal and orthodox clergymen within the Diocese of Rochester.

Application for the appointment must be made in writing to
at

on or before the 19 .

Every applicant must state her name, address, age and occupation and must be prepared to produce sufficient testimonials and other evidence of her qualification for the appointment and unless physically disabled to attend in person.

Note.—The Trustees may require the Residents to contribute a weekly sum towards the cost of maintaining the college buildings of the Charity.

Signed

} Clerk to
the
Trustees

FIRST SCHEDULE

1. *Bromley College and the above-named subsidiary
Charities thereof*

The following land situate in the Borough of Bromley:—

- (a) Land containing 4.05 acres or thereabouts having a frontage on the west side to London Road with the buildings thereon known as Bromley College comprising—

(i) Forty houses or tenements for the accommodation of beneficiaries ;

- (ii) A Chapel ;
- (iii) A Treasurer's house now let in separate tenements to Annie Edith Penman and Gertrude Maud Davies at rents amounting in 1958 to £146 ;
- (iv) A Chaplain's House ;
- (v) A Porter's Lodge and other outbuildings ;
- (b) Land containing 20 perches or thereabouts adjoining on the west side thereof the land first herein described, with the buildings thereon called Sheppard's College comprising five houses or tenements, now let to the Trustees of Sheppard's Charity as yearly tenants at the yearly rent of £6 ;
- (c) Land containing 2 acres or thereabouts adjoining on the west side thereof the land first herein described and having a frontage on the east side thereof to College Road, with the cottage and other buildings thereon, now let to Theodorus Antonius Marie Stevens for the term of 21 years from the 25th December 1954 at the yearly rent of £200.

A yearly rent of £2 in respect of an electricity feeder pillar payable by The Mayor Aldermen and Burgesses of the Borough of Bromley.

A quarterly rent of £6 10s. in respect of the use of the Air Raid Shelter at Bromley College payable by Theodorus Antonius Marie Stevens.

The following investments standing in the name of The Official Trustees of Charitable Funds:—

- £10,522 17s. 4 per cent Consolidated Stock.
- £15,000 3½ per cent. Conversion Stock, 1961 or after.
- £21,511 6s. 10d. 3 per cent. Treasury Stock.
- £7,500 2½ per cent. Treasury Stock, 1975 or after.
- £3,306 2s. 5d. 2½ per cent. Consolidated Stock.
- £670 8s. 6d. British Electricity 4½ per cent. Guaranteed Stock, 1967-69.
- £34,383 British Transport 3 per cent. Guaranteed Stock, 1978-88.
- £543 19s. 5d. British Electricity 4½ per cent. Guaranteed Stock 1967-69 (Accumulations of income).
- £293 13s. 3d. cash.

2. Sheppard's Charity

The above-mentioned land containing 20 perches or thereabouts situate in the Borough of Bromley held from the Trustees of Bromley College on a yearly tenancy as above mentioned.

The following investments standing in the name of the said Official Trustees:—

- £9,257 12s. 6d. British Transport 3 per cent. Guaranteed Stock, 1978-88.
- £5,000 London County 3 per cent. Consolidated Stock, 1920.
- £1,087 18s. 11d. British Electricity 4½ per cent. Guaranteed Stock, 1967-69 (Accumulations of Income).
- £1,870 15s. 3d. cash.

(a) *Hannah Finnie's Benefaction*

£2,687 18s. 9d. British Electricity 4½ per cent. Guaranteed Stock, 1974-79, standing in the name of the said Official Trustees.

(b) *Charity of Lucy Haslewood*

£191 12s. 11d. 2½ per cent. Consolidated Stock standing in the name of the said Official Trustees.

(c) *Charity of The Reverend Henry Aldwin Soames*

£1,695 13s. 5d. British Electricity 4½ per cent. Guaranteed Stock, 1974-79, standing in the name of the said Official Trustees.

(d) *Charity of Louisa Ann Lacey*

The following investments standing in the name of the said Official Trustees:—

£23 6s. 11d. British Electricity 4½ per cent. Guaranteed Stock, 1974-79.

£356 15s. 8d. British Transport 3 per cent. Guaranteed Stock, 1978-88.

(e) *Charity of Elizabeth Hope Lacey*

The following investments standing in the name of the said Official Trustees:—

£23 6s. 11d. British Electricity 4½ per cent. Guaranteed Stock, 1974-79.

£356 15s. 8d. British Transport 3 per cent. Guaranteed Stock, 1978-88.

3. *Charity of James Edward Newell*

£1,120 13s. 2d. 3 per cent. Treasury Stock standing in the name of the said Official Trustees.

4. *The Holland Fund*

The following investments standing in the name of Lombard Street Nominees Limited at the order of the Trustees of Bromley College:—

£2,500 5½ per cent. Funding Stock, 1982-84.

£3,072 19s. British Gas 3½ per cent. Guaranteed Stock, 1969-71.

£400 Associated Electrical Industries Limited.

1,062 Ordinary Shares of 10s. each in Distillers Company Limited.

£455 Guest Keen and Nettlefolds Limited Ordinary Stock.

£675 Imperial Chemical Industries Limited Ordinary Stock.

£140 Shell Transport and Trading Company Limited Ordinary Stock.

£431 17s. 9d. cash.

SECOND SCHEDULE

Rules for the election of the Chaplain of the Charity called
Bromley and Sheppard's Colleges

1. The Chaplain of the Charity shall be a clerk in holy orders.

2. On the occurrence of a vacancy in the office of Chaplain the Trustees of the Charity shall cause an advertisement to be inserted in two or more of the leading London newspapers and two or more of the leading Church of England newspapers to the effect that

the said office has become vacant and that candidates, being clerks in holy orders may apply to the Trustees within one calendar month from the date of the advertisement and that preference will be given to candidates who are members of Magdalen College, Oxford.

3. At the same time the Trustees shall cause notice of the vacancy in the office of Chaplain to be sent to the President of Magdalen College, Oxford and shall cause the said President to be informed of the date on or before which candidates are to apply to the Trustees.

4. If the said President so desires he may inform the Trustees on or before the last-mentioned date of the names of any members of the said College qualified for appointment.

5. Any notice hereby required to be sent to Magdalen College, Oxford shall be in writing and may be sent through the post by prepaid letter addressed to the President at the said College. Any such letter unless the same is returned through the post office undelivered shall be deemed to have been received at the time at which the letter would in the ordinary course be delivered.

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